

Court No. - 39

Case :- WRIT - C No. - 21948 of 2020

Petitioner :- Makhan Lal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Shri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent No. 2 and learned Standing Counsel representing the State.

The instant writ petition has been filed seeking the following relief:

"(a) issue, a writ, order or direction in the nature of certiorari quashing the recovery certificate dated 21.01.2020 issued by respondent No.3, District Magistrate, Mainpuri.

(b) issue, a writ, order or direction in the nature of mandamus directing to the respondent authorities to correct the disputed bill in under clause 6.5 U.P. Electricity Supply Code 2005 and provide the correct bill of the petitioner.

(c) issue, a writ, order or direction in the nature of mandamus to permit to the petitioner for deposit the amount in easy installments."

At the outset learned counsel for the petitioner has disputed the amount as indicated in the recovery citation.

Learned counsel appearing on behalf of the respondent-Corporation submits that the petitioner has an alternative remedy to approach respondent No. 2 under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The respondent No. 2 shall consider the grievance of the petitioner and shall issue appropriate direction at the earliest.

In view of availability of alternative, the writ petition is dismissed.

Order Date :- 7.1.2021

Ishrat